SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/08/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties **EMAIL THE DEPARTMENT** at dept32@contracosta.courts.ca.gov to request argument and **SPECIFY THE ISSUES to be argued**.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1

Meeting ID: 161 336 0625
Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01891
CASE NAME: ARIEL RODREGOUS VS. DOES 1-30
***HEARING ON MOTION FOR DISCOVERY COMPEL MENTAL HEALTH EXAMINATION OF PLAINTIFF**
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

1. Plaintiff will submit to a mental health examination conducted by Dr. Richard Shaw.
2. The length of the mental health examination will not exceed seven (7) hours, excluding breaks. If the examination is not completed by the end of one business day and the seven hours (excluding breaks) has not passed, the examination will continue

day to day (excluding weekends and holidays) until the seven (7) hours is completed.

3. By noon on May 22, 2026, Plaintiff will provide Defendant Antioch Unified School District with five dates between June 1, 2026 and July 17, 2026 on which she will be available for the mental health examination by Dr. Shaw.
4. Plaintiff will submit to a neurological examination by Dr. Graham Fisher at Leone Alberts & Duus, located at 1390 Willow Pass Rd., Ste 700, Concord, CA 94520.
5. Dr. Fisher's examination may take up to 75 minutes.

2. 9:00 AM CASE NUMBER: C24-00442
CASE NAME: JORGE DUARTE VS. CARLOS AVALOS
HEARING ON SUMMARY MOTION
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

The hearing on this matter is **continued on the court's motion to October 2, 2026** at 9:00 a.m. in Dept. 32.

3. 9:00 AM CASE NUMBER: C24-00442
CASE NAME: JORGE DUARTE VS. CARLOS AVALOS
HEARING ON SUMMARY MOTION
FILED BY: DUARTE, JORGE
TENTATIVE RULING:

The hearing on this matter is **continued on the court's motion to October 2, 2026** at 9:00 a.m. in Dept. 32.

4. 9:00 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM 1ST AMENDED COMPLAINT**
FILED BY: JURADO, ANTHONY
TENTATIVE RULING:

The motion of Defendants Anthony and Paula Jurado to strike punitive damages allegations in Plaintiff Timothy F. Clancy's first amended complaint is **denied**.

Background

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy owns the 32.4-acre property at 7090 Camino Tassajara, and Defendants Anthony and Paula Jurado own the property directly across the creek at 7150 Camino Tassajara. (FAC ¶¶ 12–14, 23.) The First Amended Complaint (FAC) filed on December 10, 2025 asserts causes of action for negligence, trespass, private nuisance, public nuisance, premises liability, equitable indemnification, three negligence per se causes of action based on local and state water-quality statutes, and declaratory relief.

Plaintiff alleges that Defendants acquired their property with full knowledge that an abutting creek was present, that the creekbank would require maintenance and improvement, and that the creek bed contained protected species. (FAC ¶ 2.) Defendants' property contained a creekbank extension with improper fill comprised of concrete, asphalt, tires, and debris, and Defendants had long been advised of these facts. (FAC ¶ 3.) Despite this, Defendants allegedly mismanaged their property over the years, made improvements and engaged in construction without permits, and failed to guard against material, debris, and pollutants from being discharged into the creek. (FAC ¶ 27.)

In or about 2022, Defendants' property began to fail, and fill material, asphalt, vehicle tires, and other debris fell from their property into the creek. Plaintiff alleges on information and belief that some of the material must have been dumped into the creek because it could not have come from land. (FAC ¶ 30.) Defendants allegedly responded with self-help by installing fill into the creek bed, removing dirt from the bank, adding dirt and compacted soil, removing vegetation and trees, negligently installing a keyway, cutting into the bank, and installing "riprap" that was too small to handle the waterflow of the creek. (FAC ¶¶ 4, 28.) Plaintiff alleges this work was performed without the assistance of professional consultants and without permits from any relevant governmental agency. (FAC ¶ 5.) The work then failed, causing the improper fill and other debris to slide out of the bank and become imbricated in the creek bed at locations that block and divert historic water flow and cause significant erosion to Plaintiff's property. (*Ibid*.) Plaintiff alleges that approximately 8 feet of lateral creek bank has eroded, the eastern channel of the creek is now blocked so that waterflow proceeds entirely along Plaintiff's bank, and the pollutants present an imminent risk to Plaintiff's water wells. (FAC ¶¶ 6, 7, 31.)

Plaintiff alleges that Defendants were told repeatedly they needed to work with engineers to remedy the issues, and Plaintiff had also repeatedly notified them of the need for restoration and the likelihood of further failures. (FAC ¶¶ 8, 39, 40, 57.) Despite these warnings, Defendants "doubled and tripled down" and have willfully refused to remediate the creek. (FAC ¶¶ 42, 43, 58.) Contra Costa County issued an order of abatement, but instead of presenting any plan to clean the creek, Defendants responded by advocating "for doing nothing. . . and lobbying for inaction," and in that process did not provide governmental agencies with "true, accurate, or complete information." (FAC ¶¶ 9, 10.) Plaintiff alleges that the harm to Plaintiff, including ongoing erosion, threatened loss of Heritage Oak Trees, contamination of a protected waterway, and risk of another "largescale landslide," continues to accrue. (FAC ¶¶ 6, 11, 35, 41, 64, 65, 78.) Plaintiff alleges Defendants acted with malice, oppression, and in conscious disregard of Plaintiff's rights and punitive damages are justified. (FAC ¶¶ 58, 66, 79.)

Defendants move to strike punitive damages allegations from the FAC. Specifically, they move to strike Paragraph 58 (Second Cause of Action for Trespass, page 12, lines 6–10), Paragraph 66 (Third Cause of Action for Private Nuisance, page 13, lines 20–24), and Paragraph 79 (Fourth Cause of Action for Public Nuisance, page 15, lines 20–24), each of which alleges on information and belief that Defendants acted with malice, oppression, and a conscious disregard of Plaintiff's rights, as well as Paragraph E of the Prayer for Relief (page 25, line 7), which seeks punitive damages according to proof.

Meet and Confer

Before filing a motion to strike, the moving party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. (Code Civ. Proc., § 435.5.) Any determination by the court that the meet and confer process was insufficient is not grounds to grant or deny a motion to strike. (*Id.*, § 435.5(a)(4).)

The meet and confer requirement has been satisfied. The parties met and conferred by telephone on January 7 and January 15, 2026, but were unable to resolve their dispute over the punitive damages allegations. (Mavrogianis Decl. ¶¶ 4-6.) The declaration also refers to a demurrer filed jointly with the motion to strike (*id.*, ¶ 6), however, the docket reflects no such filing.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)–(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Punitive Damages

To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Civil Code section 3294 provides that a plaintiff must allege the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code:

> (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)–(3).)

A claim for punitive damages must be pleaded with specificity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041–1042.) Allegations that a defendant's conduct was "wrongful, willful, wanton, reckless or unlawful" are not enough on their own; the plaintiff must plead facts that support the conclusion that the defendant acted with malice, oppression, or fraud. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

Analysis

Defendants argue that Plaintiff has not alleged any specific facts showing they acted with malice, oppression, or fraud, and that the FAC's punitive damages allegations rest on nothing more than conclusory assertions. They characterize the conduct alleged as a mere failure to prevent debris from entering a creek and the implementation of "emergency bank-stabilization measures (riprap)," which they contend cannot rise to the level of conduct required under Civil Code section 3294. (Mot., p. 4:17-21.)

Defendants' brief addresses only a fraction of the conduct alleged in the FAC. Defendants frame each cause of action as resting only on the paragraphs that follow the incorporation paragraph; that is, the trespass claim on Paragraph 54, and the private and public nuisance claims on the few paragraphs that follow each incorporation paragraph. But each cause of action incorporates by reference all preceding paragraphs of the FAC. (FAC ¶¶ 53, 59, 67.) Read as a whole, as the Court must on a motion to strike, the FAC pleads more than failure to prevent debris from entering a creek and the placement of emergency riprap. The pleading alleges a course of conduct in which Defendants are alleged to have known of a hazardous condition when they purchased their property, ignored repeated warnings to retain qualified professionals to assess the situation, performed unpermitted work that worsened the condition, defied an abatement order, and provided incomplete or inaccurate information to the regulators charged with overseeing the creek.

The FAC pleads the following specific facts supporting the request for punitive damages. First, Plaintiff alleges that Defendants acquired their property "with full disclosure" that it abutted Tassajara Creek, that the creekbank would require maintenance and improvement, that the creekbank already contained an improper fill extension comprised of concrete, asphalt, tires, and debris, and that the creek bed was inhabited by protected species. (FAC ¶¶ 2-3.) Defendants' alleged knowledge of the hazardous condition at the time of acquisition supports an inference that their later conduct was undertaken with awareness of the risks involved and not in response to an "emergency," as Defendants state.

Second, the FAC alleges affirmative conduct, not merely the passive failure to prevent debris from entering the creek. Defendants are alleged to have installed fill within the protected creek bed, removed dirt from the bank, added dirt and compacted soil, removed vegetation and trees, negligently installed a keyway, cut into the bank, and installed riprap "far too small to handle the waterflow" of Tassajara Creek without retaining qualified professional consultants or obtaining permits from any relevant governmental agency. (FAC ¶¶ 4-5, 28.) These are allegations of unauthorized work in a regulated waterway, in violation of multiple statutes and regulations. (FAC ¶¶ 91-121.)

Third, Plaintiff alleges that "some of the material was dumped from the [Defendants' property] into the Tassajara Creek" because the materials at issue could not have come from land naturally. (FAC ¶ 30.)

Fourth, Plaintiff alleges that Defendants were warned repeatedly that they needed to act at a higher standard with professional engineering teams (FAC ¶ 8), that Plaintiff repeatedly notified Defendants of the need for restoration and the likelihood of further failures (FAC ¶ 39), and Defendants "ignored every warning and notification," including by the County. (FAC ¶ 42.)

Fifth, Plaintiff alleges that Contra Costa County issued a formal order of abatement, and that rather than remediate, Defendants advocated for doing nothing, lobbied for inaction, and did not provide governmental agencies with true, accurate or complete information. (FAC ¶¶ 9-10.) These allegations show conscious disregard in that Defendants knew of the problem, chose not to fix it, and worked to obstruct agencies trying to address it.

Two appellate decisions support the conclusion that the conduct alleged is sufficient to support punitive damages at the pleading stage.

In *Armitage v. Decker* (1990) 218 Cal.App.3d 887, the Court of Appeal affirmed an award of punitive damages where the defendant constructed a dirt berm "in such a way that all runoff would necessarily pass onto [the neighbor's] property" and "took no steps to minimize the risk of runoff." (*Id*. at p. 906.) The court held that the defendant's failure to comply with building code requirements regarding setbacks, slope, and compacting of fill, requirements "intended to minimize problems caused by earth slippage," established that the defendant acted in disregard of the rights of adjoining owners sufficient to support a finding of malice. (*Id*. at pp. 906-907.) Plaintiff has alleged a similar pattern of unpermitted work that altered the flow of a watercourse onto Plaintiff's property, performed in violation of code provisions enacted to protect adjoining owners and the public.

In *Goshgarian v. George* (1984) 161 Cal.App.3d 1214, the Court of Appeal affirmed an award of punitive damages on a trespass claim where the defendant drained stagnant swimming pool water onto a neighboring property after being told to desist by the property owners and a sheriff's deputy, attempted to conceal his continued trespass, permitted permanent improvements to encroach on the neighbor's land after being warned they would do so, and refused to move them after a survey confirmed the encroachment. (*Id*. at 1225.) The court held that this conduct "manifested an unmistakably conscious disregard for the property rights of cross-complainants" sufficient to establish malice under section 3294. (*Ibid.*) The conduct in *Goshgarian* was more aggravated, but the FAC alleges a similar pattern: continued harm to a neighboring property after repeated warnings to desist (FAC ¶¶ 8, 39, 42), defiance of a formal abatement order (FAC ¶¶ 9-10), and incomplete or inaccurate disclosures to the agencies overseeing the creek. (FAC ¶ 9.)

Defendants argue in reply that the FAC fails because it does not allege "despicable conduct," a requirement added to Civil Code section 3294 by the 1987 Brown-Lockyer Civil Liability Reform Act, and that the cases Plaintiff relies on were decided before that amendment. (Reply at pp. 2-5.) "Despicable conduct" is conduct "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Angie M. v. Superior Court (*1995) 37 Cal.App.4th 1217, 1228.)

After the 1987 amendment, "[c]onscious disregard for the [rights or] safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences." (*Pfeifer v. John Crane, Inc*. (2013) 220 Cal.App.4th 1270, 1299.) And as discussed above, the appellate court in *Armitage v. Decker*, decided after the amendment in 1990, affirmed an award of punitive damages on sufficiently similar facts.

Defendants characterize the conduct alleged in the FAC as, at most, "negligent maintenance of a creek bank, unpermitted work, and failure to remediate erosion." (Reply, p. 1:26–28.) But the FAC alleges intentional dumping of debris (FAC ¶ 30), defiance of a County abatement order (FAC ¶¶ 9-10), incomplete or inaccurate disclosures to regulators (FAC ¶ 9), and continued conduct after repeated warnings. (FAC ¶¶ 8, 39, 42.)

The Court finds that the allegations of the FAC are sufficient to support Plaintiff's request for punitive damages at the pleading stage and the arguments Defendants raise are better suited to summary adjudication or trial.

Disposition

Based on the foregoing, Defendants' motion to strike is **denied.**

5. 9:00 AM CASE NUMBER: C24-02180
CASE NAME: GRETCHEN HUGHES VS. PATRICK O'DONNELL
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE SECOND AMENDED COMPLAINT AND TO CONSOLIDATE ACTIONS**
FILED BY: HUGHES, GRETCHEN
****TENTATIVE RULING:****

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint and to Consolidate Action is granted. Plaintiffs shall file their Second Amended Complaint by noon on May 18, 2026. Upon service by Plaintiff, Defendants shall have 30 days to file responsive pleadings.

This action is consolidated with Contra Costa County Case Number 26-00612, with the instant case to be designated the lead docket.

Court vacates the August 26, 2026 Settlement Conference.

Parties are ordered to appear **Monday, June 22, 2026 at 8:30 a.m. in Dept. 32 for a Case Management Conference (CMC).** Zoom appearance is allowed. Parties must file and serve updated CMC Statements 10 days in advance of June 22, 2026.

6. 9:00 AM CASE NUMBER: C25-00529
CASE NAME: MARCI TREVINO VS. RAMSELL CORPORATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RAMSELL CORPORATION
****TENTATIVE RULING:****

Defendant Ramsell Corporation's demurrer to the fifth cause of action in the complaint is **sustained with leave to amend.**

Plaintiff Marci Trevino filed a complaint for various employment related torts. Defendant demurred to Cause of Action Five for violation of the California Equal Pay Act (EPA) based on the failure to state sufficient facts to establish a cause of action. (Code of Civil Procedure § 430.10(e).)

Labor Code " '[s]ection 1197.5 is California's equal pay law. Its operative subsection states: "No employer shall pay any individual in the employer's employ at wage rates less than the rates paid to employees of the opposite sex in the same establishment for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions, except where the payment is made pursuant to a seniority system, a merit system, a system which measures earnings by quantity or quality of production, or a differential based on any bona fide factor other than sex." (§ 1197.5, subd. (a).)' (*Green v. Par Pools, Inc.* (2003) 111 Cal.App.4th 620, 622–623.)" (*Allen v. Staples, Inc.* (2022) 84 Cal.App.5th 188, 193-194.)

"To prove a prima facie case of wage discrimination, 'a plaintiff must establish that, based on gender, the employer pays different wages to employees doing substantially similar work under substantially similar conditions. [Footnote omitted.]' [Citation.]" (*Allen, supra,* 84 Cal.App.5th at 194; see also CACI no. 2740.)

Plaintiff argues that *Green* and *Allen* are inapplicable because they were decided on the evidence, either summary judgment or trial. The Court is mindful that these cases were not decided on the pleadings, but they are still applicable here as they provide the elements for a claim under the EPA.

Defendant argues that Plaintiff has not alleged facts to state a claim under the equal pay law. Defendant argues that these allegations are too conclusory and fail to allege that there was a male employee who (1) performed work requiring equal skill, effort, and responsibility performed under similar working conditions and (2) was paid more than her. Plaintiff argues that the allegations are sufficient.

Plaintiff also argues that requiring her to allege more would make it difficult for female corporate executives to allege a violation of the EPA. Plaintiff's argument may be correct, but Plaintiff has not cited any case law the holds the requirements for corporate executives are different than those for other employees. The Court will review Plaintiff's allegations under the current state of the law, which includes showing that there are other employees doing substantially similar work who are paid more.

Plaintiff argues that they are not required to identify a comparator in the complaint. Defendant argues that they were not asking Plaintiff to identify a specific comparator, but only to include facts supporting the elements for a violation of the equal pay law. It appears to the Court that Defendant was not arguing that Plaintiff must name a specific individual, but rather must allege sufficient facts to show that there were employees doing substantially similar work under substantially similar conditions who were paid more.

Here, Plaintiff was hired as the vice president of human resources. (Comp. ¶ 7.) "Eventually, Defendant would rely on Plaintiff for human resources, accounting, corporate compliance, and information technologies (IT)." (Comp. ¶13.) Plaintiff alleged that she "was simultaneously performing three jobs" and "was paid significantly less than male employees who had significantly less responsibility." (Comp. ¶¶ 73-74.)

The Court finds that Plaintiff has not alleged facts showing that there was an employee doing substantially similar work under substantially similar conditions who was paid more than Plaintiff. The allegation that Plaintiff was paid less than male employees with significantly less responsibility is insufficient. Having responsibility is not the same as doing substantially similar work. **The demurrer to Cause of Action Five is sustained**. This is the first challenge to this cause of action and Plaintiff has requested leave to amend. Therefore, Plaintiff is given leave to amend.

Plaintiff must file and serve an amended pleading withing 15 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C25-01808
CASE NAME: HARRY KARRIS VS. JILL CHERNE
***HEARING ON MOTION IN RE: QUASH SUBPOENAS**
FILED BY:
<u>*TENTATIVE RULING:*</u>

The unopposed motion of Betty Jean Harris to quash six subpoenae purportedly served on her behalf, copies of which are attached to the Declaration of Tanner D. Brink in Support of Motion to Quash, filed November 12, 2025 in this action, is continued for the purpose of requiring counsel for Ms. Betty Jean Harris, counsel for Harry Karris, and counsel for Defendant Jill Elizabeth Cherne to meet and confer regarding this issue.

Counsel Brink is also ordered to serve a copy of the Motion to Quash and all supporting papers on Defendant Jill Elizabeth Cherne.

The hearing is continued to **Friday, June 26, 2026 at 9:00 a.m. in Department 32**. The parties are ordered to file a joint statement regarding their meet and confer efforts nine (9) court days prior to the hearing on June 26, 2026.

8. 9:00 AM CASE NUMBER: C25-03363
CASE NAME: HARUTYUN KHOTSURYAN VS. MERCEDES-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES-BENZ USA, LLC,
TENTATIVE RULING:

Defendant, Mercedes-Benz USA, LLC ("defendant" or "Mercedes"), moves the Court under both the California Arbitration Act and the Federal Arbitration Act ("FAA") to compel plaintiff to arbitrate the claims set forth in plaintiff's complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court vacates the June 17, 2026 date for case management conference and sets a case management conference on November 9, 2026, at 8:30 a.m.** for a status update on arbitration.

Background

Plaintiff brought suit on January 26, 2026, alleging that on or about October 21, 2023, plaintiff leased a 2023 Mercedes-Benz EQS 450 and the vehicle was defective. (See Complaint, ¶2.) The complaint asserts three causes of action under the Song-Beverly Act, one for breach of the express warranty, one for breach of implied warranties, and one for breach of Civil Code § 1793.2(b), which requires manufacturers to timely perform warranty repairs.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. Defendant argues both that it is a third party beneficiary, and that plaintiff is estopped from denying the agreement. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff's complaint as well as a signed copy of the lease agreement.

The arbitration agreement contained in the lease agreement states, under "Important Arbitration Disclosures:"

> Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents , successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a "Third-Party Beneficiary"), which arises out of […] this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third-Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.
>
> […]
>
> This lease evidences a transaction involving interstate commerce. Any

> arbitration under this lease shall be governed by the Federal Arbitration Act (9 USC 1, *et seq*.). Judgment upon the award rendered may be entered in any court having jurisdiction.

Defendant further contends that any question regarding enforceability of the arbitration clause should be left to the arbitrator.

Plaintiff opposes the motion, arguing Mercedes cannot compel arbitration pursuant to the lease. Plaintiff argues Mercedes is not a third-party beneficiary and challenges defendant's reliance on the concept of estoppel. In support of the opposition, plaintiff provides a memorandum of points and authorities supported by a declaration by counsel, a request for judicial notice, and evidentiary objections to Mercedes' evidence in support of the motion.

On reply Mercedes argues that it is entitled to compel arbitration via both a third-party beneficiary theory as well as estoppel, that this Court should "not follow" *Ford*, and that the vehicle lease agreement is admissible.

Evidentiary Matters

Plaintiff requests judicial notice of three case authorities including (1) *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, issued by the California Court of Appeal, Second Appellate District; (2) *Kielar v. Superior Court* (2023) 94 Cal.App.5th 614; and (3) *Ngo v. BMW of N. Am., LLC* (9th Cir. 2022) 23 F.4th 942. The request is **granted**, though the Court notes it is unnecessary to formally request judicial notice of published cases, which must be judicially noticed. (Evid. Code, § 451 ["Judicial notice shall be taken of […] [t]he decisional, constitutional, and public statutory law of this state and of the United States […].")

Plaintiff's evidentiary objections to the lease agreement itself are **overruled** for the reasons discussed in Mercedes' reply brief. (7:15-8:4.)

Standard

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) Accordingly, the threshold question presented by a motion or petition to compel arbitration is whether there is an agreement to arbitrate. (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) California law determines the answer to this threshold question. (*Ibid*.) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid*., see also Civ. Code, §§ 1550, 1580, 1565.) "The intention of the parties is to be ascertained from the writing alone, if possible." (Civ. Code, § 1639.)

"The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC,* (2012) 55 Cal.4th 223, 236.)

Analysis

A. Ford Motor Warranty Cases (2025) 17 Cal.5th 1122

As a preliminary matter, the Court notes Mercedes' motion fails to address *Ford Motor Warranty Cases*, a unanimous Supreme Court found that the "third party beneficiary" language in an arbitration clause was not properly read as binding the buyer of the vehicle to arbitrate with unnamed third parties. (*Ford Motor Warranty Cases,* supra, 17 Cal.5th at 1127.)

Plaintiff also, in the opposition, fails to address that California Supreme Court authority despite heavily relying on the appellate court ruling issued in 2023, which was affirmed. (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324.) The appellate court had determined that Ford Motor Company was not a third-party beneficiary, stating "[i]f the signatories had intended to benefit [Ford Motor Company], such a purpose would have been easy to articulate. *They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration*. But they did not." (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1339 (emphasis added).)

The Supreme Court affirmed the Appellate Court specifically noting, "Ford, the manufacturer, was not a party to, *or named in*, the sales contracts." (*Ford Motor Warranty Cases* (2023) 17 Cal.5th 1122, 1126.) The Supreme Court adopted the appellate court's assessment that "The sales contract says nothing of binding the purchaser to arbitrate with the universe of unnamed third partes." (*Id*. at 1130.)

Here, the arbitration clause is strikingly similar to that in *Ford Motor Warranty Cases*, which required arbitration of "[a]ny claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claims or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to […] this contract or any resulting transaction or relationship (including any such relationship with third parties who did not sign this contract)." (*Ford Motor Warranty Cases*, *supra,* 17 Cal.5th at 1127.)

However, in contrast, the arbitration clause here does specify Mercedes as a third-party beneficiary, directly addressing the Supreme Court's concerns of subjecting a party to arbitrate with a "universe of unnamed third parties." (*Id*. at 1130; See also Declaration of Daniell K. Newman in Support of Motion, Ex. B, pp. 4-5.) Thus, the Court finds defendant was a specifically designated third party beneficiary (with standing to enforce contractual provisions) in the contract.

B. Existence of Agreement to Arbitrate

A party moving to compel arbitration bears an initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.) Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. (*Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, 219; see also Cal. Rules of Court, rule 3.1330 ["The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference."].)

"If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion." (*Gamboa, supra,* 72 Cal.App.5th at 165.)

Defendant here provides a written agreement purportedly signed by plaintiff with its moving papers. (Declaration of Daniell K. Newman in Support of Motion, Ex. B.) The agreement is between plaintiff on the one hand, and "Mercedes Benz of Walnut Creek," on the other, not the moving defendant. Still, the terms of the arbitration clause itself name defendant Mercedes as a third-party beneficiary.

Among the several theories that bind nonsignatories to an agreement is that of a third-party beneficiary. (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513, citations omitted [mechanisms to bind nonsignatories include: "(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary"].) "A third-party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit." (*Jensen v. U-Haul Co. of California* (2017) 18 Cal. App. 5th 295, 301.)

Under the standard set forth in *Gamboa*, plaintiff's objections to the lease agreement itself is insufficient to avoid arbitration. (*Gamboa, supra,* 72 Cal.App.5th at 165.) Despite plaintiff's objections to the document itself, plaintiff does not present any statements denying signing the agreement. Nor does the opposition argue plaintiff never entered into the agreement, which specifically defines Mercedes as a "Third-Party Beneficiary." As noted in the reply, the cases cited by plaintiff did *not* involve the vehicle manufacturer being named as a third-party beneficiary like we have here.

The agreement here not only names Mercedes as a third-party beneficiary, but specifically indicates third-party beneficiaries may compel arbitration. Accordingly, Mercedes has met its burden to show agreement to arbitrate.

Plaintiff's incorrectly asserts that "MBUSA relies extensively on *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486 ("*Felisilda*") to establish that it has the standing to Compel Arbitration as a non-signatory." On the contrary, the moving papers contain *no* mention of *Felisilda*, which predates the California Supreme Court decision in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1129, 1136, which settled a question about whether an *unnamed* manufacturer could compel arbitration under and estoppel theory, the issue in *Felisilda*.

Accordingly, Mercedes is a third-party beneficiary entitled to enforce the agreement. Because the agreement requires arbitration of "any claim or dispute," the Court need not proceed to analyze any separate estoppel argument based on plaintiff's contention that the claims here "are not intimately founded in the lease agreement." (Opposition, 11:18-14:24.)

C. The FAA Governs

Mercedes argues that, based on both the terms of the agreement, as well as the interstate nature of its business, the FAA governs. Plaintiff does not disagree on this point. The application of federal law does not have the effect sought in the opposition, however. Plaintiff suggests that, because federal law governs, the Court should follow *Ngo v. BMW of N. Am., LLC* (9th Cir. 2022) 23 F.4th 942, a case from the Ninth Circuit that, like *Felisilda*, pre-dates the California Supreme Court's decision in *Ford Motor Warranty Cases, supra.* In *Ngo*, the agreement containing an arbitration provision did *not* name the manufacturer as an intended third-party beneficiary so the case has little persuasive value here.

On the other hand, it is worth noting that if the FAA applies, as agreed by parties here, it would preempt any statutory exceptions to arbitration. So, to the extent that is what plaintiff seeks to establish in asserting the claims arise not from the leave, but from Mercedes' "statutory obligations under the Song-Beverly Act," (Opposition, 11:25) the argument fails to defeat the motion.

D. Enforceability / Delegation

Defendant argues the issue of enforceability has been delegated to the arbitrator. (Memorandum of Points and Authorities in Support of Motion, 14:13-15:15.) Plaintiff does not respond on this issue. Defendant does not quote the entirety of the paragraph containing what Mercedes contends is a delegation clause. To the extent that one exists, it is buried in a run-on sentence that the Court has reviewed and found not to be "clear and unmistakable."

The default rule is that the court engages in the enforceability analysis unless parties have "clearly and unmistakably" delegated such issues to the arbitrator. (See *Chin v. Advanced Fresh Concepts Franchise Corp.* (2011) 194 Cal.App.4th 704, 709.) Accordingly, if any separate enforceability defense had been raised, it would be the Court's to analyze. Plaintiff raises *no* real enforceability defense aside from claiming that Mercedes is not a third-party beneficiary, which has been addressed above. Accordingly, the motion must be granted.

9. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT IMPOSE MONETARY SANCTIONS OF UP TO $1,000 ON PLAINTIFF CECILY TAYLOR FOR SUBMITTING NON-EXISTENT, FALSE LEGAL AUTHORITY TO THE COURT & MISREPRESENTING THE HOLDINGS AND CONTENT OF EXISTING LEGAL AUTHORITY TO THE COURT.(PER TR ON 4/10/26)
FILED BY: TAYLOR, CECILY
****TENTATIVE RULING:****

The Court did not receive any response from Plaintiff regarding the Order Show Cause Issued in its ruling on April 10, 2026.

On its own motion the court will **continue this hearing to Friday June 12, 2026 at 9:00 a.m.**

and will separately re-issue and serve the OSC on Plaintiff and all parties.

10. 9:00 AM CASE NUMBER: C25-03801
CASE NAME: LUKE KEARNEY VS. SELENE FINANCE LP
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SELENE FINANCE LP
TENTATIVE RULING:*

The hearing on Defendant Selene Finance LP's Demurrer to the Complaint is dropped as moot. Plaintiffs filed a First Amended Complaint on April 27, 2026.

11. 9:00 AM CASE NUMBER: C26-00262
CASE NAME: NIDAH NASRALLA VS. MERCEDES BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES BENZ USA, LLC,
TENTATIVE RULING:*

Defendant, Mercedes-Benz USA, LLC ("defendant" or "Mercedes"), moves the Court under both the California Arbitration Act and the Federal Arbitration Act to compel plaintiff to arbitrate the claims set forth in plaintiff's complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court maintains the case management conference on November 2, 2026, at 8:30 a.m.** for a status update on arbitration. All parties are ordered to file an updated Case Management Conference statement 15 days in advance of the conference reporting on the status of the arbitration. (The parties may choose to file a joint statement in this regard.)

Background

Plaintiff Nidah Mohamed Nasralla brought suit on January 23, 2026, alleging that on or about July 31, 2023, plaintiff leased a 2023 Mercedes-Benz C3 and the vehicle had electrical system defects. (See Complaint, ¶¶6, 9, 12.) The complaint asserts four causes of action under the Song-Beverly Act: (1) breach of Civil Code § 1793.2(d); (2) breach of Civil Code § 1793.2(b); (3) breach of Civil Code § 1793.2(a)(3); and (4) breach of the implied warranty of merchantability.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff's complaint as well as a signed copy of the lease agreement.

The arbitration agreement contained in the lease agreement states, under "Important

Arbitration Disclosures:”

> Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents , successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a “Third-Party Beneficiary”), which arises out of […] this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third-Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.
>
> […]
>
> This lease evidences a transaction involving interstate commerce. Any arbitration under this lease shall be governed by the Federal Arbitration Act (9 USC 1, *et seq*.). Judgment upon the award rendered may be entered in any court having jurisdiction.

Defendant contends the agreement is valid and should be enforced, and that it may enforce the agreement as a third-party beneficiary.

Plaintiff opposes the motion, arguing the scope of the clause does not include her claims. She cites *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 (“*Ford*”) and *Fuentes v. Empire Nissan, Inc*. (2026) 19 Cal.5th 93 (“*Fuentes*”). Plaintiff takes the position that *Ford* stands for the principle that claims such as hers do not arise from the lease, but rather “a consumer protection statute about separate warranties.” Plaintiff contends *Fuentes* “requires that any ambiguity about scope” to be resolved in favor of plaintiff based on the adhesive nature of the contract. In support of the opposition, plaintiff provides her own declaration which states that the arbitration provision was prepared without plaintiff’s input, and presented to her on a take-it-or-leave-it basis. She claims not to have understood it, and would not assume that it required arbitration.

Standard

“Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) California law determines the answer to this threshold question. (*Ibid*.) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid*., see also Civ. Code, §§ 1550, 1580, 1565.) “‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Ibid*.; see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle*

Museum Tower Assn. v. Pinnacle Market Development (US), LLC, (2012) 55 Cal.4th 223, 236.)

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

Analysis

A. An Agreement to Arbitrate Exists Because Defendant is a Named Third-Party Beneficiary

Defendant, which bears the burden on the question of an agreement, provides a written agreement purportedly signed by plaintiff with its moving papers. (Declaration of Macy M. Chan in Support of Motion, Ex. 1.) Plaintiff does not deny having signed the contract.

The agreement is between plaintiff on the one hand, and "Mercedes Benz of Walnut Creek," on the other. Still, the terms of the arbitration clause itself name defendant as a third-party beneficiary.

Both parties discuss, and plaintiff's opposition heavily relies on, *Ford Motor Warranty Cases* (2023) 17 Cal. 5th 1122. In *Ford Motor Warranty Cases*, the arbitration clause at issue was strikingly similar to the one here. It required arbitration of "[a]ny claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claims or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to […] this contract or any resulting transaction or relationship (including any such relationship with third parties who did not sign this contract)." (*Id*. at 1127.)

The difference is the arbitration agreement in *Ford Motor Warranty Cases* did not expressly include disputes with the *manufacturer*. Notably, the court of appeal decision that was affirmed by the California Supreme Court had stated, "[i]f the signatories had intended to benefit [Ford Motor Company], such a purpose would have been easy to articulate. They could have simply named [Ford Motor Company]—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration. But they did not." (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1339.)

The Supreme Court affirmed the decision by the Second Appellate District and noted, "Ford, the manufacturer, was not a party to, or named in, the sales contracts." (*Ford Motor Warranty Cases, supra*, 17 Cal. 5th at 1126.) The Court pointed out that the sales contract did have any language binding the purchaser to arbitrate with the "universe of unnamed third partes." (*Id*. at 1130.)

Here, the arbitration agreement expressly names Mercedes Benz USA, LLC as a third-party beneficiary which remedies any worries of a broad inclusion of a "universe of unnamed third parties," posed by the California Supreme Court. (*Id*. at 1130; see also Declaration of Macy M. Chan in Support of Motion, Ex. 1, pp. 4-5.)

B. Scope of Clause

Plaintiff argues that the scope of the claims covered by the arbitration clause does not cover the claims *here*, which arise "from a consumer protection statute about separate warranties." (See Memorandum of Points and Authorities in Support of Opposition, 1:9, 6:1-7:20.)

Plaintiff's argument is based on language in *Ford Motor Warranty Cases* which refers to the dispute there "flowing, not from the contract where the arbitration clause appears, but from obligations imposed by statute or conventional fraud duties." (*Ford Motor Warranty Cases, supra,* 17 Cal.5th at 1126.) The discussion was related to rejection of an estoppel theory where a manufacturer was not explicitly named in the contract that contained an arbitration clause. This case is distinguishable, as noted above and set forth in the moving papers. (See Memorandum of Points and Authorities in Support of Motion, 5:23-6:10.) Plaintiff attempts to minimize the context of the holding ("[w]hile nominally about equitable estoppel"), but context is important here. By suggesting that there are certain types of claims that would *categorically* not be subject to arbitration, plaintiff raises preemption questions. Since federal law allows for no such exceptions and the agreement in this case is expressly governed by the FAA, the suggestion is not well-taken.

In general, whether a contractual arbitration clause covers a particular dispute depends on whether the clause in question is "broad" or "narrow." (*Ahern v. Asset Management Consultants, Inc*. (2022) 74 Cal.App.5th 675, 689; *Rice v. Downs* (2016) 248 Cal.App.4th 175, 185-187.) A broad clause includes language that requires arbitration of "any claim arising from or related to" the agreement, while a narrow clause typically includes language that requires arbitration of "a claim, dispute, or controversy" that "arises from" or "out of" an agreement." (*Ahern, supra*, 74 Cal.App.5th at 689-690; see also *Rice, supra*, 248 Cal.App.4th at 185-187.) Narrow clauses are interpreted to be more limited in scope and generally exclude language such as "relating to this agreement" or "in connection with this agreement." (*Ibid*.)

The clause here is broad. Though lengthy, it covers "[a]ny claim or dispute, whether in contract, tort or otherwise […] between you and […] Mercedes-Benz USA LLC […], which arises out of or relates to […] this lease […]." This scope includes claims against Mercedes, which would relate to the lease even if they do not arise from it. Plaintiff does little to explain why this scope description is ambiguous and the Court does not view it as so ambiguous as to exclude the claims in this case.

Notably, plaintiff makes several references to the adhesive nature of the contract here, but she makes no effort to argue that the contract was also substantively unconscionable. Accordingly, she has failed to sufficiently raise an unconscionability defense, which requires both.

Because the Court concludes defendant meets its burden to show an arbitration agreement exists, that the scope of the agreement covers "any claim or dispute […] between [plaintiff] and […] Mercedes-Benz USA LLC," and because plaintiff fails to rebut this showing or raise a valid defense, the Court must grant the motion.

12. 9:00 AM CASE NUMBER: MSC15-01952
CASE NAME: MCGUIRE VS BRENKLE
***HEARING ON MOTION IN RE: FOR ORDER AWARDING ATTORNEY'S FEES (CONT'D PER TR ON 4/10/26)**
FILED BY: MCGUIRE, FRANK J
****TENTATIVE RULING:****

The motion of Plaintiffs Frank J. McGuire and Bethanie A. McGuire for an Order Awarding Attorney's Fees is granted. The court finds that the Plaintiffs are seeking attorney's fees for the Contempt Ruling of the trial court, which found the Defendants violated the Permanent Injunction by failing to reconnect a water line supplying water to the Plaintiff's property. Anderson Decl., Exs. 4, 8.

The Court finds that the fees and costs are reasonable and necessary. The fees incurred in the Court of Appeal are recoverable, as they were incurred in connection with the contempt proceeding. The Court finds that the instant motion relates back to the original motion because the parties agreed that the hearing on the motion should be continued to allow the Court of Appeal to hear the Defendants' appeal, and that the parties agreed that if the contempt was upheld, that the Plaintiffs would be allowed to amend their papers to see their fees on appeal. Decl. of Anderson in Support of Reply, Ex 31, Ex 32. The hearing on the initial attorneys' fees motion was postponed and the parties' settlement efforts failed, and the Plaintiffs filed the instant motion.

The Court finds good cause, in the alternative, to extend time for the Plaintiffs for filing a motion for attorney's fees, per Cal. Rule of Court 3.1702(d). The court finds the Plaintiffs have acted in good faith, have attempted to resolve the matter on numerous occasions, and allowed the matter to be put on the backburner while the Defendants pursued their ultimately unsuccessful appeal.

The Court finds the Defendants have not been prejudiced by having this motion heard.

The Court orders the Defendants Thomas R. Brenkle and Natalie A. Brenkle to pay the Plaintiffs Frank J. McGuire and Bethanie A. McGuire the sum of $60,776.35 within 10 court days of service of notice of entry of this order.

13. 9:00 AM CASE NUMBER: MSC21-01379
CASE NAME: MOFFETT VS. SONIC WALNUT CREEK
HEARING ON SUMMARY MOTION
FILED BY: MERCEDES-BENZ USA,LLC
****TENTATIVE RULING:****

The Court continues this motion to **October 2, 2026 at 9:00 a.m**. in this Department.

14. 9:00 AM CASE NUMBER: N26-0223
CASE NAME: CLAIM OF: ADEN BRACKENRIDGE
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

The motion is granted. Moving party is ordered to submit an Order Approving Minor's Compromise for the Court's signature.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C22-02609
CASE NAME: WINSTON WHITE VS. JOE ASTORGA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO**
FILED BY: WHITE, WINSTON
TENTATIVE RULING:

The Court vacated hearing on this matter upon the Plaintiff's filing on April 28, 2026 of a Notice of Unconditional Settlement of Entire Case.

16. 9:01 AM CASE NUMBER: C25-02631
CASE NAME: ERQIN ZHANG VS. JAMES FRAZIER, JR.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1**
FILED BY: ZHANG, ERQIN
TENTATIVE RULING:

The hearing on this **Discovery Motion is continued on the court's motion to June 12, 2026 at 9:01 a.m.** in Dept. 32.

Counsel for Defendant is ordered to file and serve a Separate Statement that complies with Cal. Rules of Court 3.1345 within 15 days of being served with notice of entry of this order. Counsel for Defendant is further ordered to email a copy of the Separate Statement in Word format to the court at dept32@contracosta.courts.ca.gov at the same time the document is filed with the court.

Issue Conferences

17. 10:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
ISSUE CONFERENCE ALL PARTIES WITH DECISION MAKING POWERS ARE TO APPEAR IN PERSON IN THE COURTROOM.
FILED BY:
TENTATIVE RULING:

Appearances Required.

Courtroom Clerk's Session

18. 10:00 AM CASE NUMBER: C23-00634
CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.
SETTLEMENT CONFERENCE WITH MENTOR (CONTINUED FROM 04.01.2026)
FILED BY:
TENTATIVE RULING:

Appearances Required.